

Plaintiff rejects that proposal. Defendant Halvorsen participated in witness interviews, photo array identifications, and lineups in which Plaintiff asserts that Defendants Guevara and Halvorsen engaged in misconduct to fabricate evidence and to suppress exculpatory evidence to frame Plaintiff. There is no way, at summary judgment, that Defendant Halvorsen can deny his involvement in those aspects of the investigation—he is an author and signatory of multiple reports in which he is a reporting detective, and those reports document these investigative actions. And there is no denying that there is ample evidence that Plaintiff will cite at summary judgment to demonstrate that, at minimum, there are disputes of fact about whether these reports and lineups were fabricated. In addition, Halvorsen's partner, Reynaldo Guevara, has pleaded his Fifth Amendment rights rather than defend the actions of himself or Defendant Halvorsen. *LaSalle Bank Lake View v. Seguban*, 54 F.3d 387, 390 (7th Cir. 1995). Defendant Halvorsen is in the same position as Defendant Guevara. The City of Chicago also cannot seek summary judgment on Plaintiff's file suppression theory without facing sanctions. It has lost the same claim, based on the same evidence, at two recent trials. *Rivera v. Guevara*; *Fields v. City of Chicago*. And it has been precluded from relitigating that claim in another recent case. *Kluppelberg v. Burge*.

Plaintiff presents the following as his final offer to Defendants: Plaintiff will agree to dismiss all claims against Defendants Healy and Daley, all claims except for his Brady claim against Defendant Erickson, and all claims except for his file suppression Monell theory against the City of Chicago, and he will agree not to move to apply preclusion against the City of Chicago, if Defendants Guevara, Halvorsen, Erickson, and the City agree not to move for summary judgment on the remaining theories in the case. If Defendants accept this proposal, Plaintiff adds that he will agree not to seek liability against Defendant Halvorsen for the suppression of the Erickson lineup report. Please be sure to communicate this offer to all of your clients, particularly those against whom claims will be limited or dismissed entirely, given that those clients face exposure to punitive damages on the claims that would be dismissed.

To the extent that Defendants choose not to accept this offer, please be advised:

1. We will need Defendants' proposed joint statement of undisputed facts by October 27, 2023, in order to timely provide feedback in advance of the summary judgment filing deadline;
2. We will file a statement of our position on summary judgment with the Court, consistent with the discussion above;
3. We will invoke Rule 11 procedures for any summary judgment motion filed by Defendants, consistent with the discussion above;
4. We will move to preclude the City from relitigating Monell theories already litigated.

Thank you, as always, for your cooperation in this matter.

Sincerely,

Steve

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Steve Art ([Bio](#))

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On Mon, Sep 25, 2023 at 11:02 AM Theresa B. Carney <tcarney@rfclaw.com> wrote:

Counsel – we appreciate the opportunity to confer on summary judgment theories. We have considered Plaintiff's proposal (to dismiss Daley and Healy and limit the *Monell* claims against the City to the file-suppression due process theory in exchange for the other City and Defendants Guevara, Erickson and Halvorsen not moving for summary